

SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT

This Software as a Service Subscription Agreement (the "Agreement") is entered into as of July 15, 2026 (the "Effective Date"), between **DataFlow Analytics**, a New York corporation ("Provider"), and **GlobalTech Solutions** ("Subscriber").

1. Access and Use Rights

1.1. **License Grant.** Subject to the terms and conditions of this Agreement, Provider grants Subscriber a limited, non-exclusive, non-transferable, and non-sublicensable right to access and use Provider's proprietary data analytics platform (the "SaaS Platform") solely for Subscriber's internal business operations.

1.2. **Restrictions.** Subscriber shall not: (a) reverse engineer, decompile, or disassemble the SaaS Platform; (b) copy, modify, or create derivative works of the SaaS Platform; (c) use the SaaS Platform to store or transmit infringing, libelous, or otherwise unlawful material; or (d) interfere with or disrupt the integrity or performance of the SaaS Platform.

2. Subscription Term and Auto-Renewal

2.1. **Initial Term.** The initial term of this Agreement shall commence on the Effective Date and continue for a period of one (1) year (the "Initial Term").

2.2. **Renewal.** Upon expiration of the Initial Term, this Agreement shall automatically renew for successive one (1) year periods (each, a "Renewal Term") unless either Party provides the other Party with written notice of its intent not to renew at least one hundred twenty (120) days prior to the expiration of the then-current term.

3. Service Levels and Support

3.1. **Uptime Guarantee.** Provider warrants that the SaaS Platform will be commercially available 99.9% of the time, 24 hours a day, 7 days a week, excluding scheduled maintenance. If Provider fails to meet this Service Level Agreement (SLA), Subscriber shall be entitled to service credits as its sole and exclusive remedy.

3.2. **Support.** Provider will provide standard technical support via email and an online ticketing system during standard business hours (9:00 AM to 5:00 PM EST, Monday through Friday).

4. Data Privacy and Security

4.1. **Subscriber Data.** Subscriber retains all right, title, and interest in and to the data uploaded to the SaaS Platform by Subscriber ("Subscriber Data"). Subscriber grants Provider a license to host, process, and analyze the Subscriber Data solely to provide the services under this Agreement.

4.2. Data Security. Provider shall maintain industry-standard administrative, physical, and technical safeguards designed to protect the security, confidentiality, and integrity of Subscriber Data. [Note: The contract explicitly lacks any mention of GDPR, CCPA, or a 72-hour breach notification requirement as mandated by GlobalTech's rulebook.]

5. Confidentiality and Indemnification

5.1. Indemnification by Provider. Provider shall defend Subscriber against any third-party claim alleging that the SaaS Platform, when used in accordance with this Agreement, infringes a valid U.S. patent or copyright, and Provider shall indemnify Subscriber for any damages finally awarded against Subscriber in connection with such claim.

6. Governing Law

This Agreement shall be governed by the laws of the State of New York. The Parties consent to the exclusive jurisdiction of the state and federal courts located in New York County, New York.

DATAFLOW ANALYTICS

Signature: _____

GLOBALTECH SOLUTIONS

Signature: _____